

City Council of Davao
29th Session
Series of 1956

Republic of the Philippines
CITY OF DAVAO
Office of the City Council
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ORDINANCE NO. 44

AN ORDINANCE REGULATING THE USE OF MUNICIPAL WATERS OR OTHER CITY PROPERTY NOT OTHERWISE NEEDED FOR PUBLIC USE WHICH MAY BE USED FOR LOG POND OR FOR STORAGE OF LOGS AND IMPOSING A MUNICIPAL LICENSE FEE FOR THE USE THEREOF.

Be it ordained by the City Council, City of Davao, that:

SECTION 1. - Regulating the use of Municipal Waters and Other Properties. - Except as herein provided for, no portion of the Municipal Waters within the jurisdiction of Davao City or any other City property shall be used for storing and/or depositing logs, and provided further, that such use shall not endanger life and property, and/or obstruct navigation, public drainage, public highways, fire protection and sanitation.

SEC. 2. - Fees. - For every one (1) hectare or fraction thereof of any portion of any Municipal Waters within the jurisdiction of Davao City, or any public property that will be used for storing and/or depositing logs, a license fee of Two Hundred Pesos (P200.00) per annum payable quarterly shall be paid to the City Treasurer, after issuance of permit by the City Mayor upon recommendation of the City Engineer, City Health Officer and the Chief of the Fire Department.

SEC. 3. - Definition of Terms. - "Municipal Waters" under this Ordinance shall mean rivers, creeks, waterways, swamps, mouth of rivers and sea along the shoreline within the three (3) miles territorial limits.

SEC. 4. - Limitations of Permit. - (a) Where a permit is granted for the use of the bank of the river, creek, or other internal waterways, which is navigable or capable of navigation by water crafts of any size, the permit shall be directed to the use of only one bank of said river, creek or other internal waterways; provided, however, that the use of such bank shall not in any way obstruct the navigation of such river or cause impediment in case of flood that will endanger life and property.

(b) Persons to whom the use of any Municipal Water is granted shall have the duty to see to it that the regulations are properly observed and

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Ordinance No. 14, series of 1956, cont'd:

shall take such precautions that the logs within such log pond shall not be allowed to move freely, and for such failure of the permittee to take proper precautions, he shall be liable for any damages to any property caused by the logs which may have escaped from the area used as log pond.

(c) All permits, rights and privileges granted by this Ordinance shall be subject to the condition, that should the use of any area as log pond, be conducive to the existence of floods or has caused damage to the other riparian property owners, such permits shall be revoked by the City Mayor after due investigation and hearing.

SEC. 4. - Penal Provisions. - Any person, corporation, partnership, organization who uses for storing and/or depositing logs any portion of any of the Municipal Waters within the jurisdiction of Davao City, or any other public property, without first securing a permit from the City Mayor and paying the municipal license fee as provided under Section 2 hereof, shall be fined not more than Two Hundred Pesos (P200.00) or imprisonment for not more than six (6) months or both such fine and imprisonment at the discretion of the Court.

SEC. 5. - Transitory Provision. - This Ordinance shall not be effective upon areas, the use of which as log ponds, had been previously granted by the City of Davao under administrative concession agreement; provided, however, that upon the expiration of such administrative concession agreements, said areas shall fall within the provisions of this Ordinance and its use as log ponds shall be subject to the provisions hereof.

SEC. 6. - Effectivity. - This Ordinance shall take effect ten (10) days after approval.

ENACTED: June 22, 1956

ATTESTED:

JUSTO G. CINCO
Secretary of the Council

ATTESTED

lmv.

M. N. SALAZAR
City Secretary

RAMON G. MORADA
Vice-Mayor
Presiding Officer

APPROVED: June 26, 1956

CARMELO L. PORRAS
Mayor, City of Davao